

EMERGENCY POWERS

William E. Scheuerman

*Department of Political Science, Indiana University, Bloomington, Indiana 47405;
email: wscheuer@indiana.edu*

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■ **Abstract** This review considers competing models of emergency legal regulation in the aftermath of the terrorist attacks of September 11, 2001. Drawing on research in political science and political sociology, it criticizes recent debates about emergency powers among legal and constitutional scholars for ignoring the institutional dynamics of modern executive power, especially in presidential regimes. Constitutional relativists (e.g., Harvey Mansfield, Michael Stokes Paulsen, John Yoo), defenders of the extralegal model of emergency action (Oren Gross, Mark Tushnet), and common lawyers (David Cole, David Dyzenhaus) are criticized for failing to consider the pathologies likely generated by their proposals in an institutional context in which the executive possesses incentives for declaring, perpetuating, and exploiting emergency situations. Only a legal formalist perspective on emergency government (e.g., Bruce Ackerman) pays sufficient attention to the institutional dynamics of the contemporary executive.

INTRODUCTION

The terrorist attacks of September 11, 2001, quickly altered not only ordinary political debate in the United States and many other liberal democracies, but also legal scholarship. There is perhaps no better example of this shift than the dramatic revival of interest in the question of emergency powers. What special powers need to be given the executive in the context of a dire threat to the political order, and how might we best regulate those powers to preserve the rule of law and constitutionalism?¹ How can the executive both take on potentially unprecedented forms of discretionary legal authority and use it solely for the purpose of reestablishing legal normalcy? As the annals of both political theory and history quickly confirm, the dilemmas at hand are enormous. Jurists and political theorists have struggled to develop models that claim to square the circle of emergency rule, offering up a variety of ideas about how the executive might garner vast exceptional power without necessarily leading to authoritarian rule. Yet too often rulers

¹Both the rule of law and constitutionalism are contested terms. For the purposes of this review, I see them as interlocking parts of a general attempt to ensure that government action rests on norms that take a general, relatively clear, stable, and prospective form for the sake of guaranteeing both individual liberty and democratic accountability.

exploit crisis situations to augment their personal and institutional power, relying on emergencies to transform the constitutional system for the worse (Freeman 2003, Franklin 1991, Lobel 1989, Loveman 1993, Rossiter 2002 [1948]). Historical experience leads us to question what the most astute mid-century students of emergency power dubbed “constitutional dictatorship,” according to which substantial augmentations of emergency executive authority could successfully buttress rather than diminish liberal democratic legal and constitutional aspirations (Rossiter 2002 [1948], Watkins 1940).

Unfortunately, the post-9/11 debate about emergency powers has done little better at squaring the circle of emergency power. Socio-legal scholarship has raised vital questions about the structural roots of emergency government, linking its growth to the dynamics of colonialism, militarism, imperialism, capitalism, globalization, the “risk society,” and even the high-speed temporality of contemporary society (Brandon 2005; Jayasuriya 2002; Hussain 2003; Lobel 1989; Neumann & Kirchheimer 1996; Scheuerman 1999, 2004; Schneiderman 2001). Yet socio-legal researchers have avoided tackling the pressing normative and institutional question of how emergency power might be rendered congruent with the rule of law and constitutionalism. In contrast, traditional legal and constitutional scholars have tackled this puzzle. Four main positions have been staked out in the ongoing debate, each of which supports an expansion of emergency discretionary power while hoping to employ it for the sake of preserving the rule of law and constitutionalism. Constitutional relativists see the possibility of freewheeling emergency prerogative as built into constitutionally based notions of the executive power. In contrast, extralegalists follow the seventeenth century philosopher John Locke in insisting that emergency prerogative rightly operates outside the boundaries of the normally functioning legal and constitutional order. Like the constitutional relativists, the common lawyers believe that emergency authority should be conceived as resting on the law, but they look to the traditional methods and virtues of a judiciary schooled in the common law in order to counteract its dangers. Finally, the legal formalists posit that only well-designed formal emergency powers clauses, along the lines already found in some liberal democratic constitutions, provide a reasonable opportunity to square the circle of emergency power.

Yet this otherwise impressive jurisprudential debate suffers from a familiar weakness: It focuses on legal and normative arguments and fails to give sufficient consideration to the broader social and political context in which competing conceptions of emergency government operate. In what follows, I summarize and then criticize the present debate by bringing social factors—more specifically, the institutional dynamics of the modern executive—back into the story. I argue that any plausible vision of emergency government must adequately consider a body of empirical research in political science and sociology about the modern executive. In the U.S. context, special attention must be paid to critical analyses of presidentialism (Ackerman 2000, Arato 2002, Finer 1960, Linz 1994, O'Donnell 1994, Rudalevige 2005). As I show in this review, only the legal formalists acknowledge

satisfactorily the dangers posed by executive power in a historical context in which it already possesses a stunning array of political and legal weapons.

CONSTITUTIONAL RELATIVISM

Constitutional relativism became influential within the Bush administration and among its partisan academic defenders in the immediate aftermath of 9/11. This is not surprising: It provided a ready justification for the extraordinary examples of executive prerogative along the lines most U.S. citizens seemed willing to embrace. Its outlines can be discerned in a series of internal Bush administration memos authored by Jay Bybee, Alberto Gonzales, and John Yoo (Danner 2004), in recent Supreme Courts briefs penned by Justice Clarence Thomas (see Dyzenhaus 2005), as well as in scholarly works published by conservative intellectuals like the political theorist Harvey C. Mansfield (1989, 2006) and legal scholar Michael Stokes Paulsen (2004). Yet its deeper roots lie in the emergence of the modern imperial presidency (Lobel 1989, Rudalevige 2005, Schlesinger 2005).²

Although differing on some crucial points, the constitutional relativists endorse two main theses. First, they believe that the executive possesses constitutionally based authority to undertake discretionary emergency action. Bybee and Yoo, for example, refer to the commander-in-chief clause; Paulsen looks to the presidential oath clause and the executive's duty to protect, preserve, and defend the constitution; and Mansfield locates the president's special authority to respond in unprecedented ways to novel circumstances in the overall structure of the executive power clause. At least in the U.S. constitutional system (with which this group of analysts is preoccupied), the argument goes, executive-based emergency government rests on constitutional foundations. Why does the executive possess a privileged position in this scheme? It alone supposedly embodies the requisite capacities for "decision, activity, secrecy, and dispatch" famously described by Alexander Hamilton (see Rossiter 1961, pp. 424). The constitutional relativists rely on a traditional account of the unitary executive and its alleged institutional merits, despite empirical and normative questions about the viability of that account (Scheuerman 2006b).

Second, the constitutional relativists attribute far-reaching and potentially awesome emergency authority to the executive. To be sure, they describe possible institutional and legal restraints on executive discretion. For example, Yoo notes that Congress can always refuse to finance presidential wars. Yet the clear thrust of this theoretical genre is to downplay the overall significance of many of the familiar constitutional checks on executive power described by mainstream legal scholars. Yoo goes so far as to dispute the conventional view that only Congress possesses the constitutional right to declare war, interpreting the declare war clause as little more than a polite formality according to which Congress should inform

²I borrow here from Lobel's (1989) useful description of what he labels the "relativistic" model of emergency power.

other countries that the United States has commenced hostilities with them. In Yoo's highly tendentious reading of the constitutional founding, the declare war clause offers no real impediments to wars initiated by the executive (Yoo 2005; see also Cole 2005).

The relatively open-ended wording of the relevant constitutional basis is then adduced as evidence that the scope of executive power is effectively indefinable during a serious crisis. Because emergency power must always be relative to the particularities of the crisis at hand, and because we cannot *a priori* eliminate the possibility of a life-threatening existential threat, the constitution must allow for no less ambitious forms of undefined executive emergency action. In this vein, Bybee and Yoo argued in internal administration memos that President Bush is permitted to ignore longstanding congressional prohibitions on torture as part of his authority as commander in chief (see Danner 2004, pp. 144–66). Paulsen posits that the president's special responsibility as "Lord Protector of the Constitution" means that he holds legitimate authority to override even specific constitutional norms when they prevent him from protecting the constitutional order as whole. Both unilateral preemptive invasion and the denial of basic civil liberties to U.S. nationals who have taken up arms against their government potentially fall under the rubric of legitimate emergency executive power (Paulsen 2004, pp. 1272–75). Paulsen concedes that one historically counterintuitive implication of his view of executive power, considering that Americans once rebelled against monarchical rule, is that the president is permitted some exercises of power "not traditionally recognized as belonging to the British King" (Paulsen 2004, p. 1288). Even though an executive outfitted with more discretionary prerogative than a monarch may not have been the framers' subjective intention, it nonetheless was the necessary result of the constitutional mechanisms they established. In Mansfield's version of the argument, the genius of the U.S. framers stems from the fact that the "executive power represents necessity in the form of response to emergencies. It anticipates that events will occur and situations will arise that we cannot anticipate through our laws" (Mansfield 2006). Consequently, the president holds constitutional authority to act independently of and even against the legislature if necessary for the sake of tackling unprecedented crises. In sharp contrast to John Locke and other of the framers' British constitutionalist predecessors, the U.S. framers provided a constitutional basis for necessity and emergency discretion, rather than envisioning them as operating beyond the law. They broke categorically with what Mansfield derisively describes as the "small-r" republican view, according to which emergency government must always be neatly contained by prospective legal devices and the rule of law.

What then should we make of this model of emergency powers? It certainly provides substantial opportunities for the executive to act flexibly and rapidly in the face of emergencies. However, as I suggest in my introductory comments, any normatively attractive vision of emergency government must also demonstrate how it can deter executive discretion from becoming a permanent state of affairs in which the rule of law and constitutionalism are put at peril. Squaring the circle of

emergency power means not only acknowledging the possible advantages of far-reaching executive action, but also ensuring that executive discretion can ultimately be reined in.

Constitutional relativism relapses to clichés when explaining how its demiurge-like emergency executive can itself be prevented from becoming an existential foe to the rule of law and constitutionalism. The relativists are eager to let loose emergency executive discretion, but they say little about how to contain it once the emergency has subsided. Not only can we legitimately question their often tendentious interpretation of the origins of the U.S. system (Fisher 2004, Prakash 2004), but we can also observe that they seem remarkably uninterested in an impressive critical literature on the U.S. model of emergency government. According to this model, the long-term tendency among presidents to claim vast constitutional authority to combat internal and external threats has generated highly discretionary forms of law, blurred any meaningful distinction between ordinary and emergency law, undermined civil and political liberties, and dramatically shifted the focus of decision making from the legislature to the executive (Cole 2003a, Gross 2003, Lobel 1989, Scheppele 2004, U.S. Congress 1974). They also ignore a sizable literature from political sociology and political science showing that where a relatively strict separation of powers obtains between the legislature and executive, with both possessing independent bases of electoral support, they typically find themselves engaged in a zero-sum rivalry for political power and influence. In this context, the executive faces numerous institutional incentives for declaring and even perpetuating emergencies, because only then might a potentially recalcitrant legislature likely defer to executive rule (Ackerman 2000, Arato 2002, Linz 1994, O'Donnell 1994). In the orthodox and still influential view, the unitary executive alone possesses the requisite dispatch and energy necessary for managing crises. Even under normal conditions, “ongoing competition between House, Senate, and Presidency for control over the administrative apparatus has created an excessively politicized style of bureaucratic government, transforming the executive branch into an enemy of the rule of law” (Ackerman 2000, p. 641). The relativist interpretation of the executive as the bearer of an intrinsic constitutional authority to protect and preserve the political order as a whole, trumping subordinate powers granted to the legislature and judiciary, can only encourage the proliferation of emergency executive discretion.

This gap in the literature is by no means surprising because the constitutional relativists lack a convincing story about how the familiar dangers of executive emergency power can be combated. Revealingly, they prefer to engage in historical cherry picking, associating their ideas about emergency government with presidential giants like Abraham Lincoln or Franklin Roosevelt. Yet this rhetorical move tends to obscure the old political truism that we cannot always count on wise and virtuous political leaders committed to the rule of law or constitutionalism, particularly in an emergency context in which the executive has an interest in its continuation. They also respond to understandable legalistic anxieties about their proposals with a conceptual sleight of hand. For example, Mansfield points

out that the U.S. framers placed emergency discretion within the executive power clause and thus at the core of the constitutional order. This placement might imply that emergency power is also contained by traditional constitutional mechanisms; we need not worry about the dangers of the emergency executive because it is now subsumed within the constitutional system. In fact, constitutional relativists generate nothing more than legal pretense for unmitigated executive prerogative: As they repeatedly suggest, the open-ended language of the executive power, presidential oath, and commander-in-chief clauses constitutes no severe restriction on highly discretionary employments of executive power during a crisis. What we find here is not an attempt to guarantee that emergency power is consistent with the traditional idea of the rule *of* law, but instead an implicit transformation of that complex and multifaceted idea into the related but cruder notion of the rule *by* law. Rule of law has traditionally implied substantial legal restraints on the exercise of political power, whereas rule by law simply asserts that political officials can do whatever they want as long as some reasonable basis in the legal order can be found (Tamanaha 2004). In this model, vast emergency discretion that potentially derides conventional rule-of-law virtues (e.g., legal generality, publicity, clarity, stability, and prospectiveness) is justified by vague constitutional language, while neither statutory nor constitutional law is allowed to check executive authority.

EXTRALEGAL EMERGENCY POWER

A second group of authors embrace the weaknesses of constitutional relativism as virtues. For example, if constitutional relativism stumbles in part because constitutional language fails to tame executive power, why not abandon recourse to constitutional norms altogether? Constitutional provisions always “provide executive officials with a fig leaf of legal justification for the expansive use of sheer power. What appears to be emergency power limited by the rule of law is actually unlimited emergency power” (Tushnet 2005a, p. 49). So why not sacrifice the charade of law and concede that emergency power inevitably tends to explode the confines of the legal and constitutional system? No constitutional or legal norm can fully capture the possible exigencies of the emergency situation. Given the diversity of real-life crisis scenarios, how could law ever realistically succeed in doing so? In other words, one must envision executive emergency power as inherently extralegal, as operating beyond the boundaries of the legal order as a whole. This conceptual path has been pursued most systematically by the legal scholar Oren Gross, but sympathy for at least some of its attributes can be found among prominent practitioners of Critical Legal Studies as well (Gross 2003, 2005; Tushnet 2005a). This approach to emergency powers synthesizes Locke’s famous view of prerogative power as extralegal with a deep and characteristically contemporary skepticism about the capacity of law to contain political power, typically molded by the right-wing German jurist Carl Schmitt’s views of emergency legal regulation (Dyzenhaus 2005, Scheuerman 2006a).

In the face of dire emergencies, Gross argues, political officials should be permitted to pursue potentially extreme measures. We simply cannot presuppose that preexisting legal materials will anticipate what the particular dictates of the emergency situation might demand of the executive. Even if the law clearly prohibits violent measures (e.g., torture), it may be necessary to pursue them in the face of cataclysmic threats (Gross 2004). But officials at least should be required to do so openly, underscoring that their actions have no support from the legal order. Because emergency power can never be neatly cabined within the law, it is best that officials stop pretending otherwise. In Gross's account, the refusal to acknowledge the necessary extralegality of emergency action conflates ordinary and emergency law, undermines civil liberties, and generates an overall process of legal decay in which the rule of law and constitutionalism are polluted by discretionary emergency law (Gross 2003). Paradoxically, the optimal way to preserve the rule of law and constitutionalism is by neatly cordoning off extralegal emergency law and then subjecting extralegal emergency action to severe public scrutiny. An official might face criminal or civil charges in court, be forced to resign, suffer impeachment, or simply be replaced by a hostile electorate. Alternately, extralegal executive activities might get indemnified by the legislature or courts, or garner endorsement by conventional political mechanisms (e.g., a landslide reelection victory). Strict requirements for publicity and some ex post facto determination of the legitimacy of executive emergency action advances popular debate as well as individual accountability, discouraging the executive from acting unnecessarily or irresponsibly. If the executive must act openly while knowing that she can claim no legal basis for her actions and risks severe retrospective political or legal censure, she will avoid repressive action.

Gross's innovative ideas have generated substantial debate (Ackerman 2006, pp. 88–89; Cole 2003b; Dyzenhaus 2005; Huq 2006; Scheuerman 2006a). His model fails to square the circle of emergency power, however. Like constitutional relativism, the extralegal model opens the door to expeditious executive emergency action. However, it similarly fails to close the door when the crisis situation comes to an end. As in constitutional relativism, insufficient attention is paid by Gross and his allies to the institutional dynamics of modern executive power. Much of their polemic is directed at the supposedly unrealistic endeavor to subordinate executive action to traditional legal devices. Yet Gross's account of the operations of the contemporary executive proves no less unrealistic.

Gross hopes that a series of ex post facto checks on emergency action can forestall unacceptable executive discretion. In light of the impressive institutional advantages enjoyed by the modern executive, however, this seems naive. Throughout modern history, executives have relied on emergencies, real or otherwise, to undertake dramatic measures that rapidly transform basic attributes of the political and social status quo (even Locke worried that extralegal emergency acts undertaken by wise and virtuous kings might serve as dubious legal precedents for less virtuous rulers; see Fatovic 2004). Modern executives, armed with an impressive array of institutional and legal weapons, quickly close down newspapers,

clamp down on opposition parties, pursue controversial public policies, and even transform the political and constitutional rules of the game. In the context of a foreign attack, internal disorder, or severe economic downturn, a climate of fear typically inconsistent with reasonable public deliberation tends to emerge. A politically astute holder of executive power will use that climate to advance his or her political agenda, especially in socially divided polities where the executive hopes to advance significant change. Recent history includes myriad examples of executive-driven constitutional reform undertaken in the context of (real or alleged) crises: De Gaulle's France (1958), Indira Gandhi's India (1975), Yeltsin's Russia (1993), Menem's Argentina (1994), and perhaps even Franklin Roosevelt's United States (1933–1944), where emergency authority was employed to break with constitutionally based *laissez-faire* (Levinson 2006; Scheuerman 2004, pp. 71–104). The executive has obvious political incentives to use, manufacture, and perpetrate crisis situations, because the traditional view of the unitary executive as best able to act with energy and dispatch necessarily means that most political actors will look to the executive for political leadership during an emergency. The executive then will inevitably find herself particularly well positioned to pursue otherwise controversial political, social, and constitutional change. These dangers are especially pronounced in presidential systems based on a strict separation of powers, yet they arguably represent a universal feature of contemporary institutional life (Ackerman 2000, Arato 2002).

Whatever its weaknesses, the traditional notion that emergency executive action requires legal sanction at least forces the executive prospectively to provide legal or constitutional justification for her actions. Contrary to Gross and others, this familiar feature of contemporary liberal emergency government helps restrain the executive. Of course, the executive will typically offer additional political and moral justifications as well. Gross effectively reduces the burden of proof placed on an executive initiating emergency action by permitting her to do so without providing legal or constitutional grounds. When undertaking emergency action, fewer justificatory restraints function than is the case under existing emergency legal regimes. In effect, Gross condones controversial forms of emergency action that at least under the present system may be seen as legally and constitutionally suspect. To be sure, executives commonly make cynical use of ambiguous legal and constitutional norms to justify controversial actions. Yet even when relying on the most cynical constitutional justifications, they inadvertently permit legal argumentation in which those worried by executive action can respond in kind. Only the most dogmatic brand of legal skepticism can discount the virtues of such legal argumentation, seeing in it nothing more than a series of strategic political games. Even if such debate fails to put an immediate stop to the executive's actions, it helps generate a discursive and argumentative field upon which later critics can build.

In Gross's view, his model nonetheless does a superior job providing retrospective checks on executive action. Yet this assertion obscures the possibility that a fast-moving executive may very well have altered the rules of the political game

even before any *ex post facto* tests have to be met. The executive may already have effectively modified core elements of the original political universe from which such checks might have emerged. Political opponents have perhaps been imprisoned, exiled, or, in the extreme case, executed; opposition newspapers that might once have raised critical questions about the executive's actions have been closed down or at least intimidated, fearful of appearing out of sync with a nervous public eager to "rally 'round the flag." Faced with an executive making daily reminders of imminent perils in a climate of widespread anxiety, opposition politicians are likely to remain quiet as well. Of course, at some point, the public may tire of the executive's incessant crisis rhetoric and fearmongering. Yet it may suddenly find that its political, social, and constitutional system has dramatically changed. The retrospective corrective mechanisms described by Gross might then be mobilized, at least where basic democratic procedures remain intact, but those checks will be exercised in a new political environment in which the opposition must operate at least partially according to the executive's program and preferences. Is it any surprise that history provides so many examples of legally dubious executive emergency actions that go unpunished? Even modest attempts to censure legally suspect executive action retrospectively often meet with deep hostility because they emerge in a novel political universe that the executive has helped create.³

As with constitutional relativism, the advocates of extralegal emergency power eagerly countenance emergency executive discretion but prove no more successful at explaining how to contain it. Their model excuses legally dubious emergency rule without evincing possible institutional checks. Like the constitutional relativists, they ignore some of the more troubling realities of modern executive power.

COMMON LAW EMERGENCY OVERSIGHT

In response to such weaknesses, an otherwise intellectually diverse group of recent writers proposes a resuscitation of traditional common law ideals of emergency regulation (Cole 2003b, 2004; Dyzenhaus 2001, 2003, 2004, 2005; Tribe & Gudridge 2004). After all, the great common lawyer, Sir Matthew Hale, claimed that the gradual accretion of customary law, in which a slow organic progression of reason and experience could be traced, provides a better instrument for tackling the exigencies of unforeseen crises than abstract reasoning. The case-oriented approach of the common law, in which sage judges could both learn from and build on the lessons of their historical predecessors, would best deal with "the multitude of successive Exigencies and Emergencies, that in a long Tract of Time will offer themselves" (cited in Fatovic 2004, p. 291). Although breaking with the more idealized features of this view, contemporary analysts build on its core elements.

³Think, for example, of the recent domestic spying scandal in the United States, in which even partisan Democrats distanced themselves from Senator Russ Feingold's modest proposal to censure President Bush.

Like constitutional relativism, and in stark contrast to Gross, the common lawyers envision emergency law as part and parcel of the legal order. Yet they reject constitutional relativism's tendency to reduce the rule of law to rule by law, instead insisting that the rule of law should be interpreted as expressing a robust set of substantive moral and legal values, including ideals of fairness, reasonableness, and equality before the law (Dyzenhaus 2005, p. 89). In this way, they hope to subject emergency action to strict legal tests and ward off the creation of a regime of exception operating outside the confines of the law.

As David Dyzenhaus energetically argues, unprecedented emergencies may require equally novel legal and regulatory innovations. However, institutional experiments with emergency government need to remain faithful to the basic values of the rule of law. All institutions of government are expected to cooperate in realizing the law's underlying commitment to "important moral values" and especially respect for the "fundamental interests of the individual," but judges have a special role to play as guardians of the rule of law during emergencies (Dyzenhaus 2004, p. 248). Because both the legislature and executive then tend to embrace regulation incongruent with the core values of the rule of law, the task of protecting those values necessarily falls to the courts. This means in practical terms that the courts should rigorously scrutinize emergency law to make sure that it pays proper fidelity to basic legal values, always remembering that "the law that rules is not just positive law; the law includes values and principles to do with human dignity and freedom" (Dyzenhaus 2003, p. 13). Even if some courts lack the formal authority to overturn onerous emergency legislation, they are compelled to declare its inconsistency with rule-of-law values. By doing so, they may force the legislature and executive to reconsider and revise it, or at least raise public awareness of its ills. Against those troubled by the dangers of excessive judicial intervention, Dyzenhaus argues that the separation of powers doctrine should be seen as instrumental to the broader normative aspiration to realize fundamental moral values in the law. The orthodox view that judges should regularly defer to the legislature or executive represents an anachronistic impediment to the effective maintenance of rule-of-law virtues in emergency contexts (Dyzenhaus 2003, 2004, 2005).

This ambitious substantive interpretation of the rule of law thus generates a preeminent role for the judiciary in overseeing emergency law. In David Cole's version, clear echoes of the traditional common lawyer's preference for the judiciary over the legislature, as well as particularistic, case-oriented reasoning over formalistic abstract thinking, can be discerned. "Courts take up issues of emergency powers not in the abstract . . . but in the context of specific cases" (Cole 2004, p. 1763). Because emergencies inevitably occur in various forms, courts are institutionally best suited to grapple with the exigencies of emergency rule. General legal norms inevitably prove too heavy-handed (Cole 2004, Tribe & Gudridge 2004). From this perspective, the competing extralegal model rests on legitimate skepticism that prospective legislation can successfully anticipate future emergency scenarios. Yet Gross and his allies miss the possibility of an alternative,

case-oriented, common law view. For many reasons, the courts bring more foresight and wisdom to the difficult legal questions than do competing institutional actors. For example, the courts typically weigh in on the merits of emergency measures long after the measures have been promulgated and are therefore less likely to succumb to irrational crisis-related anxiety than the executive or legislature. The courts base their rulings on principled reasons intended to bind future decision makers and also pay attention to longstanding legal precedents. In the process, courts participate in a gradual process of judicial learning and the “measured development of rules in the context of specific cases” (Cole 2003b, p. 2577). Most important, courts are relatively insulated from immediate political pressures and are thus less susceptible to fear and more likely to reach deliberate and well-considered rulings (Cole 2003b, pp. 2576–77).

Much can be said in favor of this approach to emergency government. The common lawyers acknowledge the unavoidability of executive emergency action, but they seek to contain it by the tried and tested methods of a judiciary committed to a thick interpretation of the rule of law. They certainly go further than either the constitutional relativists or theorists of extralegality in squaring the circle of emergency power. To be sure, one might legitimately ask whether their proposals would not result in a political system in which “judges are the ultimate decision-makers with respect to the specification and enforcement of fundamental values” (Campbell 2003, p. 33), especially in light of Dyzenhaus’s view of the rule of law as consisting of abstract and contestable political and moral ideals. Whether a resurrected model of the common law can do justice to either modern pluralism or modern democracy remains a legitimate worry. Even if we bracket such fundamental jurisprudential reservations, however, deep immanent flaws plague the common law approach.

The common lawyers oscillate between empirical description and normative prognosis. That is, they mix descriptions of the actual workings of those legal systems (e.g., the United States, Canada, the United Kingdom) in which common law traditions remain vibrant with normative proposals for reform. On one level, this seems fair enough: Their general point is that common law traditions already at work within existing legal systems offer untapped potentials for critique and reform. Yet this oscillation generates certain conceptual ambiguities. Like constitutional relativists, the common lawyers sometimes provide an inappropriately defensive description of the system of emergency regulation as presently practiced in Anglo-American legal systems (Tribe & Gudridge 2004). In this version of their argument, they offer little more than an unconvincing apology for a system whose weaknesses—e.g., the fusion of emergency and ordinary law, the dramatic expansion of executive prerogative, and the concomitant decline of the legislature—have been widely documented. Because some of these writers simultaneously acknowledge the existence of dreary legal trends in the common law world, their positive description of the common law model necessarily appears inconsistent, or at least peculiar (Cole 2003a). Others rigorously acknowledge the ugly warts of emergency rule in the United States or United Kingdom. Yet they tend, not altogether

convincingly, to attribute such weaknesses to elements of the legal order incongruent with common law aspirations. So Dyzenhaus delights in attributing the weaknesses of the British system to what he describes as the formal separation of powers, according to which the courts defer to the executive on fundamental issues of national security and foreign affairs, and he argues that such deference conflicts with the fundaments of the common law. Yet he makes things too easy for himself: Many flaws of emergency law in the United States or United Kingdom are directly linked to core facets of the common law approach (Dyzenhaus 2003, 2005).

If we look again at Cole's traditionalistic interpretation of judicial oversight, the sources of this failing becomes clear. The judiciary is necessarily limited to *ex post facto* review, meaning that judges typically weigh in on the merits of a legislative or executive action "long after they have been adopted" (Cole 2003b, p. 2577). This may buttress Cole's expectation that the courts are likely to prove less susceptible to irrational fear. Yet this judicial virtue represents at best a double-edged sword. The delayed character of the judicial response provides plenty of time for the other branches of government (and most likely the executive) to have already undertaken damaging forms of far-reaching emergency action. As noted earlier, such actions potentially generate significant transformations to the political and legal universe. When courts finally manage to respond to emergency rule, they not only operate in the context of a political world altered by executive emergency action, but they necessarily focus on individual cases, meaning that they are typically limited to dealing with egregious and by no means typical violations of civil liberties or infringements on the rule of law. In many situations, the judiciary will only achieve useful but necessarily constrained *ex post facto* corrections to the most extreme government measures. The cautious and institutionally conservative mindset of the jurist schooled in the common law tradition undoubtedly tends to discourage dramatic challenges to unjust government action as well. Although I cannot demonstrate this point conclusively here, the instinctive common law preference for gradual and cautious legal evolution, and by no means idiosyncratic views about the separation of powers *per se*, has contributed to some of the great injustices of modern emergency government.

Dyzenhaus seems insufficiently alert to the fact that some common law systems long ago abandoned the so-called formal separation of powers that he holds responsible for the ills of emergency government.⁴ Presidential and semipresidential regimes, like the United States, expressly outfit the unitary executive with distinct legislative power, and courts there can defer to the executive for legitimate constitutional reasons. At the very least, an investigation of whether common law mechanisms operate differently in parliamentary than in presidential versions of liberal democracy would be useful. Especially in presidential regimes, where institutional

⁴In this model, "the legislature makes policy decisions, public officials implement those decisions, and judges make sure . . . [they] are limited by constitutional principle" (Dyzenhaus 2005, p. 78).

rivalry between the executive and legislature encourages the executive to declare and perpetuate crises, real or otherwise, the slow-moving common law judiciary may find itself unable to respond coherently to the dynamic of executive-driven emergency government. Built-in structural incentives that drive the president continually to expand emergency discretion mean that the courts tend to lag behind, their review powers continually outpaced in an institutional race that they cannot possibly hope to win: Before our cautious common law judges have even begun to grapple with the legal ramifications of the last round of presidential emergency measures, the executive has already undertaken new ones. In presidential regimes, where the executive is driven by immanent institutional mechanisms to exploit crisis situations to demonstrate his or her capacity for effective leadership and gain leverage against a potentially hostile legislature, common law emergency oversight seems destined to fail. As Arato (2002, pp. 457, 463) accurately observes, the “constitutional under-regulation of emergencies” in the context of a legal system with a strong common law orientation, in conjunction with the poorly defined constitutional powers of a plebiscitary president, tends to increase the likelihood of illegal and unconstitutional emergency government.

Cole restates the traditional view that judges not only are expected to build on legal precedents but also typically envision their own rulings as potentially binding on future judicial actors, the happy outcome being a “measured development of rules in the context of specific cases.” However, when an emergency is unprecedented and thus truly novel, precedent will provide little guidance to judges. Nor will judges’ own highly specific rulings provide much help to future judges facing quite different emergency scenarios. In short, judicial rulings are likely to take on a highly discretionary form in the context of emergency regulation. In this context, the common lawyers’ definition of the rule of law proves revealing: Commitments to fundamental yet necessarily open-ended ideals such as reasonableness, individual liberty, or equality before the law inevitably allow for a vast range of distinct and arguably conflicting legal outcomes. This model of the rule of law hardly provides a sturdy legal basis for hindering any but the most blatantly authoritarian and illiberal forms of executive emergency rule.

Cole might nonetheless respond that the courts’ political insularity encourages them to exercise discretion in a relatively reasonable manner because they are less subject to the anxious climate of emergency rule. Yet here as well, a familiar judicial virtue proves ambiguous. Judges in common law systems prove just as irrational, prickly, and deferential to authority as the rest of us: The history of common law jurisdictions is littered with the wreckage of bad legal rulings. Although judicial independence sometimes contributes to measured legal responses, the opposite results can occur as well. A politically secure judiciary may remain relatively unscathed by the excesses of emergency rule. Federal judges have little to fear from Draconian post-9/11 antiterror measures, for example, whereas recent immigrants, Muslims, politically active civil libertarians, and their legal advocates do. Such constituencies might appropriately respond to executive measures with outrage, whereas tenured judges announce politically quiescent and

legally smug rulings: The recent U.S. Supreme Court, for example, “has invoked repressive precedents from the gravest wars of the past as if they were applicable to our present predicament,” despite fundamental differences between the “war on terror” and previous U.S. military engagements (Ackerman 2006, p. 20). Is it any surprise that the real-life history of common law systems offers at best a mixed record at circumventing the excesses of emergency executive rule (Ewing & Gearty 2001, Scheppele 2006, U.S. Congress 1974)? Or that so much of the common law literature takes a hortatory tone, as its defenders incessantly scold the courts for jettisoning the critical resources of the common law (Dyzenhaus 2003)? Common law judges fail to rein in executive emergency power neither because of outdated ideas about the separation of powers nor because of a failure to tap into the critical resources of their own legal traditions, but instead because basic institutional attributes of contemporary liberal democracy discourage them from doing so.

EMERGENCY LEGAL FORMALISM

Only a final group of scholars concentrates competently on the central dilemmas of emergency government. These writers, who share a commitment to strict formal constitutional mechanisms as a way of regulating emergency executive discretion, start with a hard-headed analysis of what Ackerman (2006, p. 7) describes as the “presidentialist war dynamic,” according to which the president is most likely to dominate the political game by effectively exploiting crisis situations. In fact, some of the most astute advocates of this approach—most notably Ackerman (2000)—have authored important critical works on presidentialism. Successful emergency government must allow for executive discretion while minimizing the possibility of problematic unilateral executive prerogative that some versions of liberal democracy tend to invite. Given recent technological innovations and the global free market in weapons technology, advanced liberal democracies should probably expect future terrorist attacks. Such attacks would likely contribute to the proliferation of executive prerogative. The central question for institutional architects therefore becomes “how can an emergency constitution constrain the abuse of presidential power when the homeland is repeatedly shaken, at unpredictable moments, by the shock waves of terrorist assault?” (Ackerman 2006, p. 38).

The legal formalist position is endorsed by a diverse range of scholars, yet all take inspiration from classical Roman ideals of emergency government, to which they typically amend modern liberal legal sensibilities (Ackerman 2006, Arato 2002, Negretto & Rivera 2000, Rossiter 2002 [1948], Scheppele 2004, Scheuerman 2006a).⁵ The main thrust of this genre is to advocate properly designed formal

⁵The authors included under the rubric of legal formalism do not use this term, probably because the term “formalism” has become something of a bogeyman in recent jurisprudence. But for reasons that should become clear in my exposition, I consider it appropriate.

constitutional emergency power devices. They alone supposedly establish useful prospective or *ex ante* legal guidelines for emergency authority, help create a clear separation between ordinary and emergency law, and set up standards by which we can delineate legal from illegal emergency government. Exceptional powers “that can be called up during an emergency are fixed in advance of the emergency itself” by constitutional clauses that establish basic rules for their exercise (Ferejohn & Pasquino 2004, pp. 210, 235). Constitutional provisions alone determine when and how emergency power is to be put into effect. No emergency action is permitted to take on a permanent legal character and thereby blur the boundary between ordinary and exceptional law; legally codified time restrictions should be placed on its exercise. Formal constitutional devices should also “enumerate a formidable set of fundamental rights that must be respected during crises,” although allowing for some notable diversions from legal normalcy (Ackerman 2006, p. 68). Such relaxations of ordinary legal standards are only legitimate when precisely specified conditions and constitutional tests have been met, however. In Ackerman’s version of the argument, for example, the executive is permitted to request special emergency power only in the immediate aftermath of a violent domestic terrorist attack. If the legislature decides to delegate emergency authority, the executive can detain suspected terrorists for a predetermined period of no more than two to three months according to legal standards less strict than those normally operating in the law. When the initial state of emergency has passed, the executive can only continue to employ exceptional power upon the express renewal of “an escalating cascade of supermajorities: 60% for the next two months, 70 for the next, and 80 for each subsequent period” (Ackerman 2006, p. 80). Decisions to institute, as well as end, emergency government can never be left in the hands of those who exercise and potentially benefit from it politically.

Legal formalism goes further than its competitors in squaring the circle of emergency power. First, formalism allows for emergency discretion while subjecting it to significant legal and constitutional controls—the rule of law is never discarded altogether. Dire crises require augmenting executive prerogative, yet crisis situations need not generate legal black holes in which executive discretion is effectively unlimited. The ever looming specter of an emergency dictator with an obvious political interest in preserving his or her awesome power position even after a crisis has subsided is at least mitigated. For this reason, it should prove easier to reestablish legal normalcy once the emergency situation has passed. Second, this approach underscores the importance of maintaining strict, institutionally backed, temporal limits on emergency power, which similarly work to prevent it from becoming a permanent state of affairs. Third, by allowing for judicial supervision of emergency rule, formalism integrates the virtues of the common law model while recognizing its intrinsic limitations. For the legal formalists, judicial supervision plays an indispensable role in ensuring that basic rule-of-law virtues are upheld in emergency contexts. Yet the unavoidably *ex post facto* character of judicial supervision needs to be complemented by clear retrospective or *ex ante* emergency legal devices. The rule of law, after all, requires not only judicial review, but also

relatively stable and clear general legal norms on which state action is based. By necessity, such norms will have been set up prior to the occurrence of a crisis. We can thus reasonably expect that they might help achieve greater impartiality and evenhandedness than even the most impressive judicial rulings delivered in the aftermath of a state of emergency: like every form of general prospective rule making, emergency constitutional clauses will be promulgated without advanced knowledge of the specific political interests or constituencies likely to gain from their employment. To be sure, one might wonder whether prospective constitutional emergency clauses can ever fully anticipate the exigencies of novel forms of crisis. Yet the familiar dilemma of hard cases is by no means limited to the sphere of emergency regulation. The fact that no general norm can ever perfectly capture every conceivable case it was originally meant to cover hardly forces us to abandon the effort to subject the exercise of political power to law (Scheuerman 2006a).

Even more fundamentally, strict *ex ante* legal devices counter the troublesome institutional dynamic by which the executive unilaterally defines, declares, and potentially gains from emergency situations. In this model, prospective standing constitutional rules specify how and when emergencies can be declared, and the executive is forced to rely on other decision-making organs (chiefly the legislature) to set up emergency government. Of course, some executives will inevitably manipulate even the strictest system of constitutional norms, seeking to use it to their political advantage. Yet legal formalism offers plausible reasons for suggesting that we might diminish the perils posed by this ubiquitous feature of political existence. A fourth main strength of legal formalism is its quest for an effective system of institutional checks and balances. To garner emergency power, the executive needs the unambiguous support of the legislature. By itself, this presents few obstacles to a politically astute holder of executive power. In a parliamentary system, the executive is likely to have been chosen by the legislature and probably exercises *de facto* political control of his or her party and its elected representatives. In a presidential system with a strict separation of powers, during a violent crisis even members of hostile political parties tend to turn to the executive for political guidance. Thus, the mere fact that executive action requires legislative endorsement may function as no more than a rubber stamp for familiar forms of executive-centered prerogative.

Legal formalism makes two ingenious proposals to help ward off this hazard. First, inspired by the example of the South African Constitution,⁶ Ackerman (2006) advocates a supermajoritarian escalator according to which every (temporally limited) extension of emergency power would require more extensive legislative support than previous promulgations. Subsequent legislative reauthorizations demand that the executive gain the support of ever more numerous supermajorities. The aim of this proposal is to ensure that emergency government is no mere partisan weapon

⁶After 21 days, extensions of emergency power have to be approved by 60% of the National Assembly, and a state of emergency can never be extended for more than three months.

of a sitting executive and instead proves reasonably “representative of every part of the citizenry interested in the defense of the existing constitutional order” (Rossiter 2002 [1948], p. xiii.). By subjecting the executive’s most problematic acts to the will of ever decreasing proportions of the legislature, the supermajoritarian escalator functions as a direct institutional check on controversial and unreasonable executive discretion. The familial peril of the executive using emergencies to advance controversial social, political, or constitutional change would presumably be reduced.

For example, immediately following 9/11 most U.S. citizens were willing to delegate extensive emergency discretion to President Bush and even seemed to throw their political support behind his broader right-wing political and social agenda. However, many of the administration’s more repressive measures (e.g., indefinite detentions, some features of the USA PATRIOT Act, the Guantanamo Bay detention center) rapidly became controversial. A supermajoritarian escalator undoubtedly would have made pursuing these measures more difficult for the Bush administration: If within a mere year or two the renewal of special emergency power required the support of as much as 80% of elected representatives, even a coherently acting minority of Senate Democrats would have been able to threaten the administration with an effective veto. At the very least, significant modifications to administration policy might have resulted. As the initial emergency passes and the general climate of fear subsides, opposition legislators will discover their own political reasons for questioning controversial, repressive, emergency measures.

Second, during an emergency situation, “members of opposition political parties should be guaranteed the majority of seats on the [legislative] oversight committees” so as further to reduce the perils of partisan manipulation of executive emergency power (Ackerman 2006, p. 85). Although unfamiliar to the U.S. political system, other countries have experimented with minority control of legislative committees; some empirical evidence implies that it works well as a device for preventing committees from becoming mere lapdogs for the executive. Historically sensitive analysts similarly suggest that emergency government proves both politically successful and legally praiseworthy when it takes the form of a “cabinet government” in which all significant political constituencies are well represented (Rossiter 2002 [1948]).

CONCLUSION

One could easily squabble about the details of the various proposals proffered by the legal formalists. Yet it would be a mistake to become mired in the idiosyncrasies of Ackerman’s ideas, for example, and ignore the considerable insights underlying legal formalism as a whole. As I have tried to show, legal formalism begins with an empirically astute understanding of the institutional dynamics of the modern executive, and its indisputable achievement is to focus debates about institutional design on the need to counter the most disturbing structural perils

of executive-dominated emergency government. Whatever the flaws of legal formalism's specific proposals, no competing paradigm identifies the fundamental dilemmas of emergency government with comparable acumen.

Similarly, readers sympathetic to constitutional relativism or even extralegal emergency government might respond that legal formalism fails at squaring the circle of emergency power for another reason: It proves unable to justify sufficiently far-reaching modes of emergency executive discretion. Legal formalism, in short, squares the circle of emergency power but only at the cost of trivializing the necessity of executive prerogative. I have argued above that constitutional relativism reduces the ideal of the rule of law to rule by law, according to which the executive need only appeal to vague constitutional clauses to unleash vast discretion potentially inconsistent with classical rule-of-law commitments to generality, clarity, publicity, and stability in the law. In contrast, legal formalism, and to a less successful degree the common law model, pursue a rigorous legalization of the emergency situation by subjecting executive discretion to strict legal and constitutional tests. From the perspective of those who believe that emergency situations potentially demand vast expressions of executive discretion, a legally shackled executive of this type might seem unduly handicapped in the face of life-or-death emergency threats.

This is a serious rejoinder requiring careful consideration. For now, I conclude by mentioning two reasons for skepticism. First, it would be an error to understate the extent of legal formalism's concession that emergencies must allow for significant executive discretion. For example, Ackerman permits emergency security services to arrest and detain suspected terrorists on the standard of reasonable suspicion, which is less demanding than the traditional probable cause required by the ordinary criminal law (Ackerman 2006, p. 46). Only the most authoritarian perspective could dismiss the potentially far-reaching implications of this relaxation of criminal law. Some critics of Ackerman in fact worry that he allows for too much executive discretion in detaining suspected terrorists (Cole 2004, Tribe & Gudridge 2004). Second, lurking in the background of those arguments favoring far-reaching abrogations from normal legality is the old idea that emergencies typically constitute existential threats to the physical well-being and survival of the political community as a whole. When the body politic faces physical elimination, can it not rightfully undertake even the most authoritarian and violent actions to ward off attackers, even at the risk of sacrificing the luxuries of the rule of law or constitutionalism? This familiar imagery obscures two important facts, however. First, many and perhaps most crisis or emergency situations constitute serious threats, but by no means entail the prospect of the physical elimination of the political community. Al Qaeda killed thousands of U.S. civilians and undoubtedly hopes to kill more, but it is an exaggeration to assume that its activities pose a life-or-death challenge to the survival of the United States (Ackerman 2006, Scheuerman 2006b). Second, political communities are not physical organisms for which the question of what constitutes survival can be understood in relatively clear-cut terms. Political communities are always defined fundamentally by shared

normative commitments. Even if the United States were to continue to maintain the inviolate status of its existing physical borders, it very well might undergo a massive alteration to its political identity by shedding longstanding legal and constitutional commitments. It is precisely this danger, and by no means primarily the threat of physical elimination, that we Americans face today, as our government continues to sacrifice fundamental liberal democratic legal and constitutional practices in the name of a vaguely defined and temporally unlimited war on terror. An American Republic in which Guantanamo Bay, indefinite detentions, or wire-tapping at the whim of the executive were allowed to become part of ordinary law would no longer be the same political community brutally attacked by Al Qaeda on September 11, 2001.

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